

関西学院大学 法学部 英語 自習プリント

英語が得意な人のための「私大難関本番レベル」— 司法審査の反多数決問題

2026 年 5 月 26 日

高校 3 年～既卒 (難関私大文系志望)

英語 (関西学院大学 法学部・本番水準)

Trillion 塾

第1章 (例題 — 関西学院大学 法学部レベル・5 分)

関学法英語は 90 分・大問 4-5 題。本問は長文 1 題で 25 分相当。

【例題】(関西学院大学 法学部 入試 典型形式・改題)

Read the passage and answer the questions that follow.

One of the persistent puzzles of constitutional democracy concerns the power of unelected judges to strike down laws enacted by elected legislatures. In the standard arrangement of liberal democracies, the people, acting through their chosen representatives, pass statutes that they take to be just and necessary. A small group of judges, appointed for life and accountable to no electorate, then examines those statutes and, on occasion, declares one or another of them void on the ground that it conflicts with a constitution that the people themselves are nominally the ultimate source of. The arrangement has been with us, in roughly its modern form, for over two hundred years, and yet it continues to provoke a basic question: what gives the judges the right?

The most influential statement of this discomfort was offered by the American legal scholar Alexander Bickel, who in 1962 named the problem the (A) counter-majoritarian difficulty. The point was not that judicial review is unworkable, nor that it has produced uniformly bad results, but rather that the practice sits uneasily with the democratic premise that political authority should rest, in the end, on the consent of the governed. A judge who overturns a duly enacted law is, by virtue of the act, substituting her judgement for that of the people's elected representatives — and is doing so without herself being chosen by, or removable by, those people.

Defenders of the practice have offered a number of responses to Bickel's challenge. Some argue that the legislature itself is, in any modern democracy, a less perfectly majoritarian institution than the difficulty supposes: legislatures are filtered through electoral districts of unequal size, through party leaderships that bind their members to positions the public has not directly endorsed, and through procedural rules that allow minorities to block decisions the majority would have made. To set judicial review against an idealized image of majority rule is, on this view, to compare it with something that nowhere actually exists.

Other defenders advance a more substantive argument. The function of judicial review, they suggest, is not to override the majority's judgement on ordinary policy questions, but to enforce the constitutional limits that the majority itself, in a calmer constitutional moment, has placed on its own subsequent actions. A society that wishes to protect certain rights even from itself — even from its own future majorities, voting in moments of passion or panic — needs an institution capable of saying no to the legislature when those rights are threatened. The judiciary, on this account, is less a counter to democratic authority than a particular instrument of it: the instrument by which the people's long-term commitments are protected from their own short-term decisions.

Critics of this more substantive defence are unconvinced. They argue that the line between "ordinary policy" and "fundamental rights" is not given by the constitution itself, but is drawn by the judges in the course of deciding particular cases. To trust the judges to police that line is to trust them with precisely the judgement the difficulty was meant to highlight: the judgement about which decisions belong to the majority and which do not. The defenders, the critics charge, have not so much answered the difficulty as restated it in a more comforting vocabulary.

A more pragmatic line of argument tries to dissolve the question by attending to what judges actually do. Empirical studies of constitutional courts in functioning democracies suggest that judges generally hesitate to strike down popular statutes, that they cluster their interventions in areas where political consensus has weakened, and that they pay careful attention to the institutional consequences of their decisions. The judiciary, on this account, is one part of a larger political conversation, not its sovereign master, and the difficulty is real but considerably less acute than the abstract framing implies.

Whether one finds these responses adequate depends, in large part, on what one thinks democracy is for. If democracy is fundamentally the rule of the present majority over the present minority, then any institution that resists that rule, however it is dressed up, is a problem. If democracy is also, and crucially, a long-term project of self-government in which present majorities accept constraints in order to make future self-government possible, then institutions like judicial review may, on net, be among democracy's tools rather than among its enemies. The counter-majoritarian difficulty does not, in the end, admit of a knock-down solution. What it offers, instead, is a recurring discipline: a reminder

that the legitimacy of judicial review cannot be assumed but has to be earned, in each generation, by the quality of the judgements that the practice produces.

Q1. What "persistent puzzle of constitutional democracy" does the first paragraph describe?

- ① The power of unelected judges to strike down laws enacted by elected legislatures.
- ② The cost of running judicial systems.
- ③ The difficulty of training enough lawyers.
- ④ The question of whether judges should be paid more.

Q2. What did Alexander Bickel mean by the "counter-majoritarian difficulty"?

- ① That judicial review is technically unworkable.
- ② That judicial review sits uneasily with the democratic premise that political authority should rest on the consent of the governed, since judges substitute their judgement for that of elected representatives without themselves being chosen by the people.
- ③ That majority rule is always correct and must never be overruled.
- ④ That all judges are corrupt.

Q3. What is the first response from defenders of judicial review, according to the third paragraph?

- ① That the legislature is itself less perfectly majoritarian than the difficulty supposes (filtered through electoral districts of unequal size, party leaderships, procedural rules), so judicial review is being compared with an idealized image of majority rule that nowhere actually exists.
- ② That judges always know better than ordinary citizens.
- ③ That majority rule has been mathematically proven inferior.
- ④ That constitutions should be rewritten every decade.

Q4. What is the "more substantive argument" that other defenders advance, according to the fourth paragraph?

- ① That judges are entitled to make any decision they wish.
- ② That judicial review enforces the constitutional limits that the majority itself, in a calmer constitutional moment, has placed on its own subsequent actions — protecting long-term commitments from short-term decisions.

- ③ That all constitutional courts should be abolished.
- ④ That judges should be directly elected.

Q5. What is the central objection raised by critics of the substantive defence?

- ① That the line between "ordinary policy" and "fundamental rights" is not given by the constitution itself but is drawn by the judges in deciding particular cases, so trusting judges to police that line is to trust them with precisely the judgement the difficulty was meant to highlight.
- ② That fundamental rights do not exist.
- ③ That judges should write the constitution themselves.
- ④ That ordinary policy is more important than rights.

Q6. Which of the following best summarizes the author's overall conclusion?

- ① The counter-majoritarian difficulty has been definitively solved.
- ② Whether one finds the responses adequate depends on what one thinks democracy is for; the difficulty does not admit of a knock-down solution but offers a recurring discipline — a reminder that the legitimacy of judicial review has to be earned, in each generation, by the quality of the judgements the practice produces.
- ③ Judicial review should be immediately abolished in all democracies.
- ④ Constitutional courts have no real political function.

counter-majoritarian difficulty — Bickel 1962

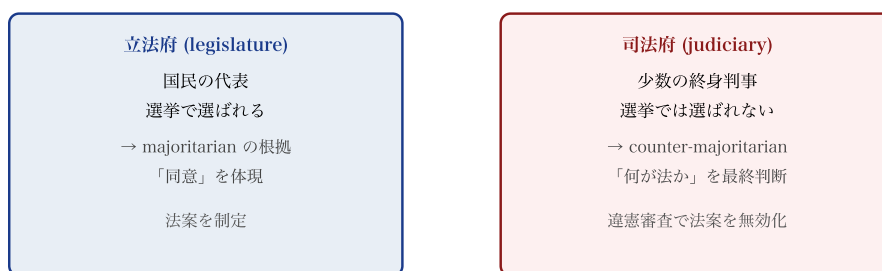


図 1-1 違憲審査の核心構造 — 民選代表 vs 非民選判事の権限衝突

第2章 (解法の全体方針と武器整理・3 分)

関学法の長文は「現象 → 古典的批判 → 防御 1 → 防御 2 → 反批判 → 実証的緩和 → 哲学的留保」の 7 段論法。

【ジャンル分析】

本文は典型的な (A) constitutional law philosophy essay。著者は 7 段かけて、Alexander Bickel の counter-majoritarian difficulty を多角的に検討する。(B) 関学法の長文は憲法学・法哲学が交差するテーマが頻出。

【本問で必要な 4 つの武器】

- ① (A) 民主主義と司法審査の緊張 の構造把握
- ② (B) 複数の防御論の対比 (procedural / substantive / pragmatic)
- ③ (C) 憲法学用語の文脈推測 — "majoritarian" "consent of the governed" "void" "constitutional moment"
- ④ (D) 著者の立場 = 中立的整理者 と読む (結論はメタ的な「reminder」)

【各設問の戦略】

Q1 (puzzle) → 第 1 段 "unelected judges to strike down laws"

Q2 (Bickel) → 第 2 段 "sits uneasily with the democratic premise"

Q3 (防御 1) → 第 3 段 "legislature itself ... less perfectly majoritarian"

Q4 (防御 2) → 第 4 段 "enforce the constitutional limits ... long-term commitments"

Q5 (反批判) → 第 5 段 "the line ... is not given by the constitution itself, but is drawn by the judges"

Q6 (全体結論) → 最終段 "recurring discipline ... has to be earned"

第3章 (Q1 + Q2 — puzzle + Bickel の定式化・8 分)

「現象 + 古典的問題定式」を続けて聞く。

【Q1 設問】 What "persistent puzzle of constitutional democracy" does the first paragraph describe?

★ 第 1 段の論理

"One of the persistent puzzles of constitutional democracy concerns (A) the power of unelected judges to strike down laws enacted by elected legislatures."

★ Q1 paraphrase

本文 "the power of unelected judges to strike down laws enacted by elected legislatures"
選択肢① "The power of unelected judges to strike down laws enacted by elected legislatures"

→ 機械的に一致。

【Q1 正解】 ① The power of unelected judges to strike down laws enacted by elected legislatures.

【Q2 設問】 What did Alexander Bickel mean by the "counter-majoritarian difficulty"?

★ 第 2 段の論理

"the practice (A) sits uneasily with the democratic premise that political authority should rest, in the end, on the consent of the governed. A judge who overturns a duly enacted law is, by virtue of the act, (B) substituting her judgement for that of the people's elected representatives — and is doing so without herself being chosen by, or removable by, those people."

★ Q2 paraphrase

本文 "sits uneasily with the democratic premise ... consent of the governed ... substituting her judgement for that of elected representatives ... without ... being chosen by, or removable by, those people"

選択肢② "judicial review sits uneasily with the democratic premise that political authority should rest on the consent of the governed, since judges substitute their judgement for that

of elected representatives without themselves being chosen by the people"

→ 直接対応。

【Q2 正解】② That judicial review sits uneasily with the democratic premise that political authority should rest on the consent of the governed, since judges substitute their judgement for that of elected representatives without themselves being chosen by the people.

💡 法哲学頻出: "consent of the governed" は Declaration of Independence (1776) と Locke "Two Treatises of Government" に遡る民主主義の正統性根拠。

第4章 (Q3 + Q4 — 防御 1 + 防御 2・10 分)

「procedural defence + substantive defence」を続けて聞く。

【Q3 設問】 What is the first response from defenders, according to the third paragraph?

★ 第 3 段の論理 (procedural defence)

"Some argue that (A) the legislature itself is, in any modern democracy, a less perfectly majoritarian institution than the difficulty supposes: legislatures are filtered through electoral districts of unequal size, through party leaderships that bind their members to positions the public has not directly endorsed, and through procedural rules that allow minorities to block decisions the majority would have made. To set judicial review against an idealized image of majority rule is, on this view, to compare it with something that nowhere actually exists."

★ Q3 paraphrase

本文 "legislature itself is ... less perfectly majoritarian ... electoral districts of unequal size, party leaderships, procedural rules ... idealized image of majority rule ... nowhere actually exists"

選択肢① "the legislature is itself less perfectly majoritarian than the difficulty supposes (filtered through electoral districts of unequal size, party leaderships, procedural rules), so judicial review is being compared with an idealized image of majority rule that nowhere actually exists"

→ 全要素対応。

【Q3 正解】 ① That the legislature is itself less perfectly majoritarian than the difficulty supposes (filtered through electoral districts of unequal size, party leaderships, procedural rules), so judicial review is being compared with an idealized image of majority rule that nowhere actually exists.

【Q4 設問】 What is the "more substantive argument" that other defenders advance?

★ 第 4 段の論理 (substantive defence)

"The function of judicial review ... is not to override the majority's judgement on ordinary

policy questions, but to (A) enforce the constitutional limits that the majority itself, in a calmer constitutional moment, has placed on its own subsequent actions."

"A society that wishes to (B) protect certain rights even from itself — even from its own future majorities, voting in moments of passion or panic — needs an institution capable of saying no to the legislature when those rights are threatened."

★ Q4 paraphrase

本文 "enforce the constitutional limits ... majority itself ... calmer constitutional moment ... protect ... rights even from itself ... long-term commitments"

選択肢② "judicial review enforces the constitutional limits that the majority itself, in a calmer constitutional moment, has placed on its own subsequent actions — protecting long-term commitments from short-term decisions"

→ 直接対応。

【Q4 正解】② That judicial review enforces the constitutional limits that the majority itself, in a calmer constitutional moment, has placed on its own subsequent actions — protecting long-term commitments from short-term decisions.

★ 重要観察 — Q3 と Q4 の連動

Q3 = procedural defence (立法府も完璧でない) → Q4 = substantive defence (司法は long-term commitment を守る)。(A) 両防御は補完的で、Q3 は司法審査を低位置に置く批判を相対化し、Q4 はその積極的価値を提示する。

司法審査擁護論 — 3 つの応答

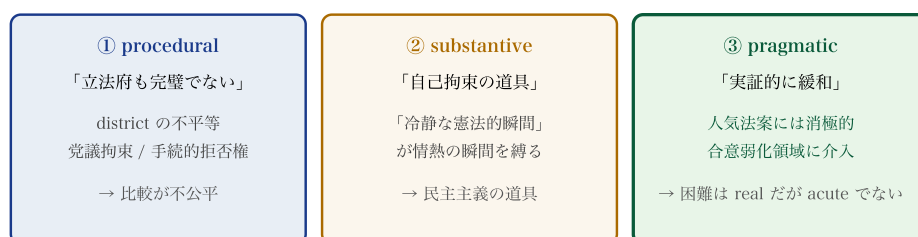


図 5-1 Bickel への 3 種の応答 — procedural / substantive / pragmatic

第5章 (Q5 — 反批判の論理・5 分)

「substantive defence への反批判」を読む。

【設問】 What is the central objection raised by critics of the substantive defence?

★ 第 5 段の論理

"They argue that (A) the line between 'ordinary policy' and 'fundamental rights' is not given by the constitution itself, but is drawn by the judges in the course of deciding particular cases. To trust the judges to police that line is to (B) trust them with precisely the judgement the difficulty was meant to highlight: the judgement about which decisions belong to the majority and which do not. The defenders, the critics charge, have not so much answered the difficulty as restated it in a more comforting vocabulary."

★ paraphrase 対応

本文 "the line between 'ordinary policy' and 'fundamental rights' is not given by the constitution itself, but is drawn by the judges ... trust them with precisely the judgement the difficulty was meant to highlight"

選択肢① "the line between 'ordinary policy' and 'fundamental rights' is not given by the constitution itself but is drawn by the judges in deciding particular cases, so trusting judges to police that line is to trust them with precisely the judgement the difficulty was meant to highlight"

→ 直接対応。

★ 誤答分析

- ・ ② "fundamental rights do not exist" → (A) 本文に権利否定なし。
- ・ ③ "judges should write the constitution themselves" → (B) 本文と逆方向。
- ・ ④ "ordinary policy is more important than rights" → (C) 本文に価値序列なし。

【正解】 ① That the line between "ordinary policy" and "fundamental rights" is not given by the constitution itself but is drawn by the judges in deciding particular cases, so trusting judges to police that line is to trust them with precisely the judgement the difficulty was meant to highlight.

💡 法哲学頻出論点: 「権利 vs 政策」の区別を誰が引くか。Dworkin の "rights as trumps" 論への Waldron 系の反論の核心。

第6章 (Q6 — Main Idea 設問 + 関連話題・10 分)

憲法学エッセイの結論は「メタ的反復的規律」型。

【設問】 Which of the following best summarizes the author's overall conclusion?

★ 最終段の精読

"Whether one finds these responses adequate depends, in large part, on (A) what one thinks democracy is for."

"The counter-majoritarian difficulty does not, in the end, admit of a (B) knock-down solution. What it offers, instead, is a (C) recurring discipline: a reminder that the legitimacy of judicial review cannot be assumed but has to be earned, in each generation, by the quality of the judgements that the practice produces."

→ 主旨 3 要素:

- ①回答の評価は「民主主義とは何か」の見解次第
- ②決定的解はない (knock-down solution は無理)
- ③恒常的規律として機能 (世代毎に正当性を再獲得)

★ 選択肢②との対応

"Whether one finds the responses adequate depends on what one thinks democracy is for; the difficulty does not admit of a knock-down solution but offers a recurring discipline — a reminder that the legitimacy of judicial review has to be earned, in each generation, by the quality of the judgements the practice produces"

→ 3 要素すべて含む。

【正解】 ② Whether one finds the responses adequate depends on what one thinks democracy is for; the difficulty does not admit of a knock-down solution but offers a recurring discipline — a reminder that the legitimacy of judicial review has to be earned, in each generation, by the quality of the judgements the practice produces.

★ 関連話題 — 関学法進学後への接続

- (A) Alexander Bickel "The Least Dangerous Branch" (1962) — counter-majoritarian difficulty の古典
- (B) John Hart Ely "Democracy and Distrust" (1980) — procedural defence の代表

- ・ (C) Ronald Dworkin "Taking Rights Seriously" (1977) — substantive defence の代表
- ・ (D) Jeremy Waldron "The Core of the Case Against Judicial Review" (2006) — 反対派代表
- ・ (A) 日本最高裁の違憲判決事例 — 在外邦人選挙権 (2005) / 非嫡出子相続差別 (2013) / 再婚禁止期間 (2015)
- ・ (B) Marbury v. Madison (1803) — 米国違憲審査制の起源

★ 大学進学後への接続

1 年次: 法学入門・憲法・法哲学

2-3 年次: 憲法ゼミ / 法哲学ゼミ / 比較憲法ゼミ

卒論候補: 日本の違憲判決の歴史的分析 / 米国最高裁の Roe v. Wade と Dobbs / 司法消極主義 vs 司法積極主義

第7章 (関学法英語 攻略のコツ・5 分)

関学法長文を完答するための 5 つの技術。

【コツ 1】 7 段論法 (現象 → 古典的問題 → 防御 1 → 防御 2 → 反批判 → 実証的緩和 → 哲学的留保) を予測

【コツ 2】 憲法学・法哲学者の固有名詞

- ・ (A) Bickel / Ely / Dworkin / Waldron — 違憲審査論争の四天王
- ・ (B) Rawls / Habermas / Sunstein — 政治哲学者の関連論
- ・ (C) Marshall (Marbury) / Warren / Roberts — 米最高裁の歴史的長官
- ・ (D) 伊藤正己 / 樋口陽一 / 長谷部恭男 — 日本の憲法学者

【コツ 3】 関学法頻出語の文脈推測

majoritarian / counter-majoritarian / consent of the governed / void / overturn / substitute / constitutional moment / knock-down / discipline / legitimacy

【コツ 4】 誤答パターン 4 種 (関学法版)

- ・ (A) 極端化: definitively solved / immediately abolished / no real function
- ・ (B) 絶対主義: judges always know better / majority rule always correct
- ・ (C) 論点ずれ: 経済性・国際関係・宗教 — 憲法学エッセイの範囲外
- ・ (D) 逆方向: defenders と critics を取り違える

【コツ 5】 時間配分 (関学 90 分)

長文には(A) 25 分を上限。

【最後にひとこと】

関学法の英語は(A) 語学試験であると同時に(B) 憲法学リテラシー試験。本問の counter-majoritarian difficulty は、入学後に学ぶ憲法・法哲学の中核論点。

第8章 (類題チャレンジ・10 分) [10 点]

本講義の手法を応用する 5 問。

(類題 1) 本文中の "strike down" の意味として最も近いものを選びなさい。

- ① (法律を) 違憲として無効にする
- ② (罷業で) 業務を停止する
- ③ (打撃を) 殴って倒す
- ④ (税金を) 免除する

(類題 2) 本文の "calmer constitutional moment" が示唆するものとして最も適切なものを選びなさい。

- ① 情熱や恐怖から距離を取って憲法を制定した過去の冷静な時刻
- ② 国民投票の当日
- ③ 皇室の即位儀式
- ④ 外交交渉の合間

(類題 3) 本文中で Alexander Bickel が引用される役割として最も適切なものを選びなさい。

- ① 「反多数決問題」(counter-majoritarian difficulty) を 1962 年に定式化した米国の法学者として
- ② 現代米最高裁の長官として
- ③ 本文の著者の指導教官として
- ④ 現役の日本最高裁判事として

(類題 4) 本文の "knock-down solution" の意味として最も近いものを選びなさい。

- ① 決定的・反論不可能な解答
- ② ボクシングの試合
- ③ 建物の取り壊し
- ④ 格安販売価格

(類題 5) 本文の論理構成として最も近いものを選びなさい。

- ① 現象 (司法審査) → Bickel の難問 → procedural 防御 → substantive 防御 → critic の反論 → pragmatic な緩和 → メタ的結論 (recurring discipline)
- ② 結論先出し → 根拠列挙のみ
- ③ 賛成意見の単純な列挙
- ④ 歴史的説明のみで結論なし

第9章 (まとめ・宿題・5 分)

今日の核心整理と関学法本番に向けた宿題

【本日の核心 5 か条】

- ① 憲法学エッセイは (A) 「古典的難問 → 複数の防御 → 反批判 → 実証的緩和 → メタ的結論」 の構成。
- ② (B) counter-majoritarian difficulty (Bickel 1962) は司法審査論の最重要概念。
- ③ (C) procedural / substantive / pragmatic の 3 防御を識別する。
- ④ 誤答パターンは「(D) 絶対主義」(judges always know best 等)。法哲学は条件付き議論。
- ⑤ 主旨設問は(A) 「knock-down solution はない、recurring discipline」型を選ぶ。

【宿題】

- ① 本講義の Q1-Q6 を見ないで本文だけ読み直し、自分で 6 問の設問を作成。
- ② 類題 5 問を解き直し、本文 7 段の各段にひと言タイトルを書き出す。
- ③ 過去問: 関西学院大学 法学部 英語 (過去 5 年分) から長文 1 題を選び、本日の手法で精読する。

【最後にひとこと】

関学法の英語は(A) 語学試験であると同時に(B) 憲法学リテラシー試験。本問の counter-majoritarian difficulty は、入学後に学ぶ憲法・法哲学の中核論点。